

Subject: Complaint regarding the unlawful processing of personal data by an employer.

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Romain Robert and Christophe Boeraeve, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by Me Alexandre Cassart, hereinafter referred to as "the complainant";

The defendant: The Belgian Institute Y, represented by Me Mireille Buydens and Me Charles Bernard, hereinafter referred to as "the defendant".

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I. Facts and procedure

1.

On March 5, 2024, the complainant filed a complaint with the Data Protection Authority against the defendant.

2.

The subject of the complaint concerns the unlawful processing of personal data.

3.

On October 24, 2024, the complainant's hierarchical superior, after receiving the reasoned decision refusing the extension of the complainant's security clearance (hereinafter, "reasoned decision"), informed him that a disciplinary investigation had been opened against him. This reasoned decision explicitly refers to the ongoing investigation with the Prosecutor (hereinafter, "Prosecutor") in which the complainant is suspected of indecent assault on a minor.

4.

The granting and withdrawal of security clearances are governed by the law of December 11, 1998, relating to classification, security clearances, security certificates, security notices, and the regulated public service (hereinafter, "law of December 11, 1998")¹.

5.

On January 19, 2023, the security officer requested the National Security Authority (hereinafter, "ANS") to extend the complainant's security clearance.

6.

On July 7, 2023, the ANS notified the defendant's security officer of its refusal to extend the complainant's security clearance (hereinafter, "notification of the decision") (document 2), attaching the reasoned decision (document 1) and requesting the security officer to communicate it to the complainant².

7.

On July 24, 2024, the complainant received the reasoned decision, in accordance with Article 22, paragraphs 3 and 5 of the law of December 11, 1998.

8.

At the time of the events³, the security officer was responsible for monitoring elements related to security clearances that could lead to their revision⁴. In this context,

1 The case at hand concerns a decision to withdraw a security clearance; the modalities for granting them will not be addressed in this decision.

2 Article 22, paragraph 3 and 5 of the law of December 11, 1998.

3 Article 13/1 of the law of December 11, 1998 was repealed on December 31, 2023; it stated: "Art. 13/1. The persons referred to in Article 13, 1°, are in particular responsible for:

- a) on the one hand, the application and control of the security policy and the protection of classified information or, on the other hand, the monitoring of security certificates or security notices;
- b) monitoring, in particular for the mention of elements related to persons who have received a security notice, a security certificate, or a security clearance, and which may lead to a revision of this security notice, security certificate, or security clearance.

The King may assign other missions to security officers respectively in the area of security clearances and the protection of what has been classified in accordance with Article 3, § 1, and in the area of security notices or security certificates.

The security officer performs his tasks independently. He reports to the managing official of public administrations, public interest organizations, or autonomous public enterprises, or to the respective head of the public prosecutor's office referred to in Article 13, d), or to the responsible person of a legal entity under private law. He informs the authority referred to in Article 15, paragraph 1, when this is provided for."

4 Article 13/1 of the law of December 11, 1998.

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It reports to its managing official⁵, the Council of the Defendant⁶, by communicating the reasoned decision to him.

9.

In turn, the Council of the Defendant communicates the reasoned decision to the hierarchical superior of the complainant so that he can initiate a disciplinary investigation against the latter⁷.

10.

Finally, the Council of the Defendant communicates the reasoned decision to its lawyers to request access to the ongoing file before the Prosecutor.

11.

On March 27, 2024, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint is transmitted to the Contentious Chamber under Article 62, § 1 of the LCA.

12.

On May 3, 2024, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits. Under Article 92, 1° of the LCA, the Contentious Chamber will make a decision on the merits regarding the subject of the complaint.

13.

On May 15, 2024, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions. The grievances identified by the Contentious Chamber concern alleged violations of the following articles:

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Alleged violation of Articles 5.1.a), 6, and 10 of the GDPR, due to the absence of a legal basis for processing the complainant's judicial data, which led to the initiation of a disciplinary procedure against him.

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Alleged violation of Articles 5.1.b) and 6 of the GDPR, due to the lack of information regarding the compatibility of the purposes of the concerned processing, namely, on the one hand, the transmission of the reasoned decision to the Council of the Defendant and, on the other hand, the transmission of this decision to the hierarchical superior of the complainant.

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Alleged violation of Articles 12.1, 12.3, 12.4, and 15 of the GDPR, due to the refusal to comply with the

exercise of the complainant's right of access for reasons that would fall under the exception of Article 23.1.d) of the GDPR.

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Alleged violation of Articles 5.1.f) and 32 of the GDPR, due to the absence of appropriate technical and organizational measures to ensure the confidentiality of the complainant's personal data, by sending the reasoned decision to his hierarchical superior.

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Alleged violation of Articles 5.2, 24.1, and 25.2 of the GDPR, due to failures in the responsibilities mentioned above, which led to the transmission of the reasoned decision, the initiation of a disciplinary procedure against the complainant, and the transmission of a file to the Prosecutor.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions has been set for June 26, 2024, the deadline for the complainant's reply conclusions for July 24, 2024, and finally, the deadline for the defendant's additional summary conclusions for August 21, 2024.

14.

On May 29, 2024, the defendant requests a copy of the file (art. 95, §2, 3° LCA), which is transmitted to him on June 10, 2024.

15.

On June 26, 2024, the Contentious Chamber receives the response conclusions from the defendant regarding the findings related to the subject of the complaint.

16.

On July 23, 2024, the Contentious Chamber receives the reply conclusions from the complainant regarding the findings related to the subject of the complaint.

17.

On August 13, 2024, the Contentious Chamber acknowledges receipt of the defendant's request to include the ANS as an interested third party. On the same day, the Contentious Chamber invites the defendant to substantiate its request by providing evidence demonstrating that the ANS would be likely to suffer personal, direct, certain, current, and legitimate harm due to the proceedings on the merits.

18.

On August 20, 2024, the Contentious Chamber receives the additional summary conclusions from the defendant regarding the findings related to the subject of the complaint.

19.

On September 12, 2024, the Contentious Chamber receives the arguments from the defendant regarding the involvement of the ANS as an interested third party.

20. On September 18, 2024, the Contentious Chamber finds that it has not received sufficient arguments indicating that the ANS would be likely to suffer personal, direct, certain, current, and legitimate harm due to the ongoing proceedings and decides not to invite it as an interested third party.

II. The decision to refuse the extension of the security clearance

21.

The Contentious Chamber considers it important to detail the legal framework for this refusal to extend the complainant's security clearance.

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22.

In light of the blatant interference of security investigations with the privacy of the individuals concerned, the legislator has framed their withdrawal by the law of December 11, 1998, in accordance with Article 8.2 of the Charter of Fundamental Rights of the European Union (hereinafter, "Charter")⁸. It follows that the law of December 11, 1998, constitutes an official authorization to access classified data within the limits set by this law.

23.

When the ANS decides, based on a security investigation, not to extend a security clearance, it notifies the individual concerned, through the intervention of the security officer, attaching the reasons⁹. This obligation to notify the reasoned decision to the individual concerned excludes de jure any other recipient¹⁰.

24.

The obligation of the security officer under Article 13/1 of the law of December 11, 1998¹¹ involves monitoring individuals subject to a security clearance in order to timely detect concerning changes such as radicalization and to communicate these to the ANS¹².

25.

This same article obliges the officer to report to the leaders of the administrative authority to which he is attached, any new elements or irregularities as mentioned in the previous point to his superiors.

III. Motivation

III.1. Regarding the alleged violation of Articles 5.1.a), 6, and 10 of the GDPR

III.1.1. Position of the Complainant

26.

In this case, the complainant believes that the initiation of the disciplinary investigation is the result of a chain of five processes:

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Process 1) : The initial collection of his personal data by the ANS;

8 Parl. Doc., House of Representatives, 1193/1, p.2.

9 Article 22, paragraph 3 and 5 of the law of December 11, 1998.

10 Article 22.3 of the law of December 11, 1998.

11 The article was repealed on December 31, 2023. It stipulated that: "Art. 13/1. The persons referred to in Article 13, 1°, are in particular responsible for:

a) on the one hand, the application and control of the policy regarding security and the protection of classified information or, on the other hand, the monitoring of security clearances or security notices;

b) monitoring, in particular for the mention of elements relating to persons who have received a security notice, a security clearance, or a security authorization, which may lead to a revision of that security notice, security clearance, or security authorization.

The King may assign to security officers other missions respectively concerning security clearances and the protection of what has been classified in accordance with Article 3, § 1, and concerning security notices or security clearances.

The security officer performs his tasks independently. He reports to the managing official of public administrations, public interest bodies, or autonomous public enterprises, or to the respective head of the public prosecutor's office referred to in Article 13, d), or to the responsible person of a private legal entity. He informs the authority referred to in Article 15, paragraph 1, when this is provided for." See also: Parliamentary Works, 55K2443, Article 12

12 Parliamentary Works 54K2767/001, Article 3.

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Processing 2): The communication of the reasoned decision attached to the notification of the decision by the ANS to the security officer of the defendant;

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Processing 3): The communication of the reasoned decision by the security officer of the defendant to the Council of the latter;

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Processing 4): The transmission of the reasoned decision by the Council of the defendant to the hierarchical superior of the complainant; and

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Processing 5): The communication of the reasoned decision by the Council of the defendant to its lawyer.

27.

Furthermore, the complainant believes that the reasoned decision concerns a suspicion of an offense, which, according to him, undoubtedly has a criminal nature even if it is not established in this instance. Referring to the judgment of the Court of Justice of the European Union (hereinafter, "CJEU") of September 24, 2019, the complainant considers that this data falls within the scope of Article 10 of the

GDPR and benefits from its additional protection.

28.

Regarding the lawfulness of processes 1) and 2), the complainant asserts that they are based, respectively, on the legal obligations arising from Articles 16 and 22 of the law of December 11, 1998 in conjunction with Article 110 of the law of July 30, 2018 on the protection of natural persons with regard to the processing of personal data (hereinafter, "law of July 30, 2018"). He considers the basis for these processes under Article 6.1.c) of the GDPR to be justified and therefore the processes 1) and 2) lawful.

29.

Regarding processing 3), the complainant assumes that the defendant would base it on the necessity for the security officer to report to his hierarchical superior, as prescribed by Article 13/1 of the law of December 11, 1998. Nevertheless, he considers this provision to be unclear, precise, and predictable. Furthermore, the complainant believes that the purpose pursued by this legal obligation does not correspond to that invoked by the defendant, namely, the adoption of appropriate organizational measures against him.

30.

Regarding processing 4), the complainant believes that Articles 10 §1, 1st and 10 §1, 3rd of the law of July 30, 2018 cannot be invoked, in this case, to justify the processing of judicial data within the meaning of Article 10 of the GDPR. First, the complainant asserts that the authorization arising from the legal obligation to manage his own litigation is an ex post authorization of the processing. The litigation between the Council of the defendant and the complainant only occurred after the disputed processes. Secondly, having not been informed of such exchanges regarding his data, the complainant asserts that he was unaware of any litigation with the defendant at the time of the processing. The complainant believes that

13 CJEU, September 24, 2019, judgment GC., AF, BH, ED v. National Commission for Informatics and Liberties (CNIL), C-136/17, paragraph 72.

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this lack of information would make it impossible to base the processing 4) on grounds of public interest for the performance of tasks of general interest.

31.

As for processing 5), the complainant assumes that the defendant bases it on its legal obligation to conduct an urgent and thorough investigation arising from Article 90 of the Royal Decree of [date] (hereinafter, "Administrative Status")¹⁴, governed by the general principle of reasonable time. Nevertheless, the complainant refers to a letter from his superior which specifies that in the event of criminal proceedings, the disciplinary procedure is suspended¹⁵ and to Article 93 of the Administrative Status which provides for the suspension of the investigation in the event of prosecution.

III.1.2. Position of the defendant

32.

Firstly, the defendant believes that the reasoned decision is not a judicial data within the meaning of Article 10 of the GDPR since it refers to a suspicion of criminal offense. It emphasizes for this purpose that Article 10 of the GDPR has a narrower scope than its counterpart in Directive 95/46/EC¹⁶. The defendant considers the relevance of the case law invoked by the complainant to be limited. In any case, the defendant believes that the processing would have been in compliance with Article 10 §1 of the law of July 30, 2018 for the management of its litigation against the complainant and Article 10 §3 of the same law as being necessary for the management and functioning of a public interest body tasked by the law of [date] (hereinafter, "regulator's law")¹⁷ with a public interest mission.

33. Secondly, the defendant argues the lack of jurisdiction of the Contentious Chamber to hear the processing 1) to 3) following a combined reading of Articles 107 and 128 §1 of the law of July 30, 2018, which assigns to the Permanent Committee R the competence to control the processing of personal data carried out by security authorities as understood by Article 107, 1° of the law of December 11, 1998.

34. As a subsidiary point, the defendant considers the five processes to be lawful. As highlighted by

the complainant, processes 1) and 2) are based on Articles 16 and 22 of the law of December 11, 1998.

35. Regarding processing 3), the defendant considers it necessary for compliance with the legal obligation arising from Article 13/1 of the law of December 11, 1998, for the security officer to report to his supervising official, the Council of the defendant, to notify sensitive information, new elements, or irregularities concerning

14 Royal Decree of [date].

15 C.E., December 21, 2023, No. 258.302, pp. 15 and 16.

16 Directive 95/46/EC of the European Parliament and of the Council of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

17 Law of [date].

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Individuals who have received or are to receive authorization. In this regard, the defendant emphasizes that the reasoned decision is made in compliance with this obligation, requiring that the Council of the defendant take the necessary and appropriate measures considering the nature of the security threat that justified this decision. The defendant adds that the reasoned decision does not contain classified information, as understood by Article 22.5 of the law of December 11, 1998, and that, therefore, it can be communicated by the security officer to the Council of the defendant.

36. Regarding processing 4), the defendant believes that it serves two distinct purposes: on the one hand, compliance with its procedural rules (purpose corresponding to Article 6.1.c) of the GDPR), and on the other hand, the management of its disciplinary litigation (purpose corresponding to Article 6.1.e) of the GDPR). The defendant considers that processing 4) is necessary to comply with its procedural rules regarding disciplinary matters as provided by Article 90 of the Administrative Statute. This clear and precise legal norm of Belgian law would leave the Council of the defendant no choice but to transmit the reasoned decision to the hierarchical superior of the complainant, who is the only one authorized to open a disciplinary investigation. Secondly, the defendant explains that the Administrative Statute assigns it the execution of disciplinary functions related to its statutory agents, which involve processing that can be justified based on Article 6.1.e) of the GDPR. The defendant adds that since the disciplinary procedure is carried out by the hierarchical superior of the person concerned, this individual must be able to assess any facts that may result in a disciplinary measure within the framework of their urgent and thorough investigation.

37.

Finally, the defendant believes that processing 5) is lawful and is based on the same legal grounds as processing 4), namely Articles 6.1.c) and 6.1.e) of the GDPR. The defendant explains that the case law of the Council of State imposes on it the obligation to exercise all possible diligence in the context of these disciplinary investigations, including contacting the Prosecutor to obtain access to the criminal file of the person concerned to establish the materiality of the facts that may lead to a disciplinary sanction.

III.1.3. Position of the Disciplinary Chamber

38. As a preliminary matter, the Disciplinary Chamber notes that neither the defendant nor the complainant contests the lawfulness of processing 1) and 2).

18 Article 90.1 of the Administrative Statute.

19 C.E., April 12, 2016, No. 234.333, Wuyard. C.E., June 26, 2013, No. 224.141, Brosse. C.E., February 29, 2000, No. 85.745, Van Mullen. C.E., June 27, 2017, No. 238.626, Virentin. C.E., May 2, 2016, No. 234.616.

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39. Furthermore, these processes are carried out by the ANS, an authority integrated into the State Security, and do not fall under the provisions of the GDPR as understood by Article 2.2.a).

40. Therefore, the Disciplinary Chamber considers that these processes fall under the competence of the Permanent Committee R and will not be analyzed in this decision.

41.

As a preliminary matter, it is necessary to establish whether the reasoned decision falls within the scope of Article 10 of the GDPR.

42.

The latter requires, in a non-cumulative manner, that the processing of personal data relating to criminal convictions, offenses, or related security measures be carried out under the control of a public authority or that they be framed by Union law or Belgian law, in this case, the law of July 30, 2018.

i. Articles 2, 4.1, and 4.2 of the GDPR

43. It is important for the Disciplinary Chamber to establish whether the reasoned decision falls within the definition of Article 4.1 of the GDPR, and whether the processing, as identified in point 26 of this decision, falls within the material scope as defined by Article 2 of the GDPR.

Processing of personal data

44. In this case, the complainant is identifiable based on their name and surname, which are included in the reasoned decision, qualifying it as personal data within the meaning of Article 4.1 of the GDPR.

45. Consequently, its communication by the security officer and the Council of the defendant constitutes a "processing" within the meaning of Article 4.2 of the GDPR.

Material scope of the GDPR

46. Secondly, it is important to note that the communication of the reasoned decision falls within the definition of the material scope of Article 2.1 of the GDPR and is not excluded from the GDPR by the exceptions of its Article 2.2.a) and d).

47.

On the one hand, Article 2.2.a) of the GDPR, read in light of Recital 16, excludes from the scope of the GDPR the processing of personal data carried out by the

20 Article 1ter of the law of December 11, 1998.

21 Doc Parl., House of Representatives, (...), 2017/2018, p.152.

22 Article 128 of the Law of July 30, 2018.

23 Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data.

24 Article 4.2 of the GDPR must be read in light of Recital 26, which provides for taking into account all means reasonably likely to be used to identify a data subject.

25 Article 2. "This regulation does not apply to the processing of personal data carried out:

a) in the context of an activity that falls outside the scope of Union law;..."

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State authorities in the context of an activity aimed at preserving national security or an activity that can be categorized in the same category²⁶.

48. Furthermore, the processing 3), 4), and 5) is carried out by the regulator of the Belgian Institute Y, a public interest body with legal personality²⁷, in the context of activities related to the management of its personnel. Consequently, these processes are not excluded from the GDPR by Article 2.2.a).

49. On the other hand, Article 2.2.d) of the GDPR²⁸ excludes from the GDPR the processing of protected data

by Directive 2016/680 of April 27, 2016²⁹, as transposed in Title II of the law of July 30, 2018.

50. This Title II applies to data processing carried out by the competent authorities³⁰, for the purposes of preventing and detecting criminal offenses, investigations, and prosecutions in this matter or the enforcement of criminal sanctions³¹.

51.

Although the regulator's law grants inspection powers to the defendant, these do not fall within the purposes stated above.

52.

The first condition is not met. The conditions for the application of Title II of the law of July 30, 2018 being cumulative, the Contentious Chamber considers that it is not necessary to analyze the second and decides that the processes 3) to 5) are not excluded

from the GDPR by its Article 2.2.d).

ii. Article 10 of the GDPR

53. First, it is necessary to assess whether the motivated decision can be classified as "judicial data" in the sense of "personal data relating to criminal convictions and offenses or related security measures"³².

54. Secondly, the Contentious Chamber will verify whether the security officer and the Council of the defendant are among the entities authorized to process judicial data as provided by the exceptions of Article 10 of the GDPR and Article 10 of the law of July 30, 2018.

26 CJEU, June 12, 2021, judgment *Latvijas Republikas Saeima*, C-439/19, paragraph 66.

27 Article 13 of the Regulator's Law.

28 Article 2.2.d): "[...] 2. This regulation does not apply to the processing of personal data carried out: [...] d) by competent authorities for the purposes of preventing and detecting criminal offenses, investigations, and

prosecutions in this matter or the enforcement of criminal sanctions, including protection against threats to public safety

and the prevention of such threats."

29 Directive 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard

to the processing of personal data by competent authorities for the purposes of preventing and detecting criminal offenses, investigations,

and prosecutions in this matter or the enforcement of criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council.

30 Article 26 §7 of the law of July 30, 2018.

31 Article 27 of the law of July 30, 2018.

32 Article 10 of the GDPR.

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"Judicial data"

55. The Contentious Chamber recalls that the motivated decision explicitly mentions the Prosecutor's file in which the complainant is suspected of indecent assault on a minor.

56. In this regard, the Contentious Chamber refers to the judgment C-136/17 of the CJEU³³ which explains

that "information concerning a judicial procedure conducted [...] such as that relating to its indictment or trial [...] constitutes data relating to

'criminal offenses' and 'criminal convictions' within the meaning of Article 8, paragraph 5, first subparagraph, of Directive 95/46 and Article 10 of Regulation 2016/679."

57.

It follows that the CJEU intends to include in the scope of Article 10 of the GDPR suspicions of criminal offenses when they are the subject of an ongoing file with the Prosecutor.

58. The motivated decision contains, in the present case, judicial data as understood by Article 10 of the GDPR insofar as it includes data relating to the ongoing file with the Prosecutor in which the complainant is a suspect.

On the processing of judicial data

59. As explained in point 54, the Contentious Chamber must assess whether the security officer and the Council of the defendant are exceptionally authorized to process judicial data as understood by Article 10 of the GDPR and Article 10 of the law of July 30, 2018.

60. The Contentious Chamber emphasizes that a combined reading of the second exception of Article 10 of the GDPR and Article 10 §1, 3rd of the law of July 30, 2018 allows the security officer to carry out such processing when it is necessary for important public interest reasons for the fulfillment of general interest tasks entrusted by or under a law.

61.

In this case, a combined reading of Articles 13/1 and 22, paragraph 3 of the law of December 11, 1998 as analyzed in Title II of this decision requires the security officer to communicate the motivated

decision to the person concerned, by exclusion of jure to the Council of the defendant.

62.

It follows that the law of December 11, 1998 does not authorize the security officer to transmit the motivated decision to the Council of the defendant.

63. The communication of the motivated decision by the security officer to the Council of the defendant therefore exceeds the scope of the exception provided for in Article 10 §1, 3rd of the law of July 30, 2018 and renders the processing 3) illegal due to the absence of a legal basis.

33 CJEU, judgment of September 24, 2019, GC v. CNIL, C-136/17, paragraph 72.

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64. The Contentious Chamber concludes that Articles 5.1.a), 6, and 10 of the GDPR have been violated.

65. Consequently, the original communication under processing 3) of the reasoned decision having no legal basis, the Contentious Chamber considers that processes 4) and 5) are also illegal for the same reasons.

66. For all practical purposes, the Contentious Chamber notes that the communication of the notification of the decision—therefore without raising its reasoning—by the security officer and the Defendant's Counsel could have, *prima facie*, been a less intrusive means for the freedoms and fundamental rights of the complainant to achieve the purposes of processes 3), 4), and 5).

III.2. Regarding the alleged violation of Articles 12.1, 12.3, 12.4, and 15 of the GDPR

III.2.1. Complainant's Position

67. The complainant believes that, in accordance with Article 15.4 of the GDPR as interpreted by the CJEU in its judgment of May 4, 2023, it is possible to obtain a copy of entire documents when such a copy is essential for the data subject to exercise the rights they hold under the GDPR. It is essential for him to obtain a copy of the full content of the correspondence exchanged between the defendant and the Prosecutor in order to understand and, if necessary, contest the processing of his personal data.

68. Furthermore, the complainant considers that the defendant is not required to provide any assistance to the information, firstly because access to the criminal file has been denied to him by the Prosecutor, and secondly because Article 93 of the Administrative Statute imposes the suspension of the disciplinary procedure as long as a criminal action is ongoing. The complainant also emphasizes that information, in accordance with Article 28bis, §1 of the Code of Criminal Procedure (hereinafter, "C.i.c."), refers to all elements of acts intended to investigate offenses, their authors, and evidence, and to gather elements useful for the exercise of public action. The letter sent by the defendant's lawyer to the Prosecutor does not correspond in any way to an investigative act. Thus, the exchanges of correspondence to which the complainant seeks access do not fall under the information and are not covered by its secrecy.

III.2.2. Defendant's Position

69. The defendant believes that the correspondence with the Prosecutor falls within the scope of Article 23 of the GDPR through Article 28quinquies, §1 of the C.i.c., which states that "except for exceptions provided by law, information is secret. Any person called to provide professional assistance to the information is bound to secrecy."

70. In addition, the defendant argues that the right of access to a copy under Article 15.3 of the GDPR does not entail the right for the data subject to obtain a copy of the original document but only to obtain a copy of the data. She concludes that she is not obligated to provide a copy of the correspondence addressed to the Prosecutor and that the complainant's access request constitutes an attempt to divert the purposes of the right of access established in Article 15 of the GDPR in order to interfere in the judicial information and the disciplinary investigation conducted by the defendant. She adds that a copy of an excerpt from a document or an entire document can only be required when the contextualization of the processed data is necessary to ensure its intelligibility. In this sense, the present case constitutes the best evidence of the complainant's knowledge of the data contained in the correspondence with the Prosecutor.

III.2.3. Position of the Contentious Chamber

71. The Contentious Chamber will first assess whether the defendant can legitimately justify her

refusal to comply with the complainant's access request based on Article 23 of the GDPR and, secondly, will evaluate the provisions of Article 15.3 of the GDPR and the complainant's right to obtain a copy.

i. Article 15 of the GDPR

72. Under Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. When such data is being processed, the data subject has the right to access such data as well as a series of information listed in Article 15.1.a) to h) of the GDPR.

73. The Contentious Chamber recalls that the right of access constitutes an essential requirement of the right to data protection, as it serves as the "gateway" that enables the exercise of other rights conferred by the GDPR to the data subject.

74. Under Article 12.1 of the GDPR, it is the responsibility of the data controller to take "appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, understandable, and easily accessible manner, in clear and plain language [...]."

ii. Article 23 of the GDPR

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75.

Article 23 of the GDPR provides that, under Union law or the law of a Member State, the application of the rights listed in Articles 15 to 22 and 34 of the GDPR may be limited, subject to the conditions set out in this article. The provisions of Article 23 of the GDPR aim to create a balance between these rights and other legitimate interests in a democratic society. To this end, restrictions on the aforementioned rights are possible provided that the following conditions are met:

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First: the derogation must be provided for by a legislative measure;

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Second: the derogation must pursue one of the reasons listed in the exhaustive list of Article 23.1 of the GDPR³⁶;

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Third: the derogation must respect the essence of the fundamental rights and freedoms;

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Fourth: the derogation must be a necessary and proportionate measure in a democratic society (proportionality test);

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Fifth: the legislative measure must contain specific provisions relating to certain characteristics of the processing in question.³⁷

36 Namely:

a) national security;

b) national defense;

c) public security;

d) the prevention and detection of criminal offenses, as well as investigations and prosecutions in this regard or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats;

e) other important objectives of general public interest of the Union or a Member State, including significant economic or financial interest of the Union or a Member State, including in the areas of monetary, budgetary, and fiscal policy, public health, and social security;

f) the protection of the independence of the judiciary and judicial proceedings;

g) the prevention and detection of breaches of professional ethics in regulated professions, as well as investigations and prosecutions in this regard;

h) a mission of control, inspection, or regulation related, even occasionally, to the exercise of public authority, in the cases referred to in points a) to e) and g);

i) the protection of the data subject or the rights and freedoms of others;

j) the enforcement of civil law requests.

37 Article 23.2: In particular, any legislative measure referred to in paragraph 1 contains specific provisions relating, at least where applicable:

- a) to the purposes of the processing or categories of processing;
- b) to the categories of personal data;
- c) to the extent of the limitations introduced;
- d) to the safeguards to prevent abuse or unlawful access or transfer;
- e) to the identification of the data controller or categories of data controllers;
- f) to the retention periods and applicable safeguards, taking into account the nature, scope, and purposes of the processing or categories of processing;
- g) to the risks to the rights and freedoms of the data subjects; and
- h) to the right of data subjects to be informed of the limitation, unless this risks undermining the purpose of the limitation.

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The derogation provided by a legislative measure

76.

Regarding the first condition, the legislative measure does not necessarily have to be a law in the formal sense but any legal norm that is sufficiently clear and precise, the application of which is predictable for any concerned party suffices³⁸.

77.

In this case, the defendant invokes the derogation provided by the C.i.c., a law that provides for a limitation on the right of access through the secrecy of criminal information in its article 28quinquies.

78.

Article 28bis C.i.c. establishes a list of acts included in the information and derogating from the right of access, namely "all acts intended to investigate offenses, their authors, and the evidence, and to gather the elements useful for the exercise of public action."

79.

In this instance, the personal data that is the subject of the complainant's access request consists of the correspondence between the defendant and the Prosecutor.

80. The Prosecutor's refusal to grant access to the ongoing investigation file to the defendant based on this article 28quinquies is an indication that this correspondence is not useful for the exercise of public action. On the contrary, it seems to resemble a request for information about the ongoing investigation file, which was refused based on the investigation secrecy of article 28quinquies of the C.i.c.

81.

The Contentious Chamber understands *prima facie* that nothing in the correspondence between the defendant and the Prosecutor pertains to the investigation and concludes that it does not constitute an act as understood by article 28bis of the C.i.c.

82.

As a result, the justification for the refusal of the complainant's access request does not satisfy the first condition of article 23 of the GDPR.

83. Consequently, the Contentious Chamber does not find it necessary to continue its analysis of article 23 of the GDPR and concludes that the access request cannot be refused based on this article.

iii. Article 15.3 of the GDPR

84. As a preliminary matter, the Contentious Chamber recalls that a refusal to respond to the request for access to a copy must be based on the result of a balancing of interests exercise as provided for by article 15.4 of the GDPR and not on the grounds that the complainant has not demonstrated that the contextualization of the processed data is necessary to ensure its intelligibility. The Contentious Chamber considers the defendant's interpretation to be erroneous due to a misreading of the judgment of the CJEU³⁹ on which it relies.

38 CJEU, September 12, 2024, judgment HTB Neute Immobilien Portfolio and Okorenta Neue Energien Okostabil IV, C-17/22 and C-18/22, paragraph 68.

39 CJEU, May 4, 2023, Österreichische Datenschutzbehörde and Crif, C-487/21, paragraph 41.

85. The GDPR provides under Article 15.3 that the data controller shall provide a copy of the personal data to the data subject. This right to a copy is the primary means of granting access to the processed data.

86. In the judgment C-487/21 of May 4, 2023, the CJEU held that the right under Article 15.3 of the GDPR implies the right to obtain copies of excerpts from documents or even entire documents, or excerpts from databases that contain, among other things, the said data, if providing such a copy is essential to enable the data subject to effectively exercise the rights conferred upon them by this regulation, emphasizing that "the rights and freedoms of others must be taken into account in this regard" (the Contentious Chamber emphasizes).

87. Since the right of access is not an absolute right, Article 15.4 of the GDPR provides that the right to obtain a copy must not adversely affect the rights and freedoms of others. Therefore, the interpretation of Article 15.4 of the GDPR requires particular caution to avoid unjustifiably broadening the limitations permitted by Article 23 of the GDPR, particularly under Article 23.1.i) which also retains the limitation ground based on "the infringement of the rights and freedoms of others." These limitations are indeed only permitted, notably concerning the right of access, under strict conditions.

88. Although it may appear to be formulated in absolute terms, Article 15.4 of the GDPR nonetheless requires a proportionate approach. A balancing with other fundamental rights must, in accordance with the principle of proportionality, be carried out on a case-by-case basis by the data controller seeking to rely on it.

89. In this case, the Contentious Chamber notes that the defendant did not perform a balancing of rights that would justify its refusal to comply with the right to obtain a copy requested by the complainant.

90. The defendant justifies this refusal solely on the basis of Article 23 of the GDPR, claiming that this request would allow the complainant to interfere with the judicial information and the disciplinary investigation conducted by the defendant. This refusal is found to be invalid, as analyzed above.

40 EDPB, Guidelines 01/2022 on the right of access, point 23

41 CJEU, judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF GmbH, C-487/21, ECLI:EU:C:2023:369, § 45.

42 CJEU, judgment of November 9, 2010, Volker and Markus Schecke, joined cases C-92/09 and C-93/09, point 48. See also: EDPB, Guidelines 01/2022 on the right of access, point 168.

43 Article 23.1.i) of the GDPR provides that "1. The law of the Union or the law of the Member State to which the data controller or the processor is subject may, by legislative measures, limit the scope of the obligations and rights provided for in Articles 12 to 22 and in Article 34, as well as in Article 5 to the extent that the provisions of the relevant law correspond to the rights and obligations provided for in Articles 12 to 22, when such limitation respects the essence of the fundamental freedoms and rights and constitutes a necessary and proportionate measure in a democratic society to guarantee: (...) i) the protection of the data subject or the rights and freedoms of others."

44 Article 52.1 of the Charter of Fundamental Rights of the European Union. See also: EDPB, Guidelines 01/2022 on the right of access, point 174.

91.

Consequently, the complainant is entitled to receive a copy of this correspondence since the defendant has not justified its refusal to comply with the right to obtain a copy in accordance with Article 15.4 of the GDPR.

92.

In conclusion, the Contentious Chamber considers that the defendant has failed to meet the obligations arising from Articles 12.1, 12.3, 12.4, and 15 of the GDPR. Therefore, the Contentious Chamber orders the defendant to grant the complainant access to a copy of the correspondence it had with the Prosecutor.

III.3. Regarding the alleged violations of Articles 5.1.f), 5.2, 24.1, 25.2, and 32 of the GDPR

III.3.1. Position of the complainant

93. In this case, the complainant believes that the measures listed by the defendant do not explain how access by the hierarchical superior to his data complies with the provisions of Articles 5.1.f) and 32 of the GDPR. He also notes that only security officers and administrative staff responsible for monitoring individual files are included in the list of categories of persons having access to personal data related to criminal convictions and offenses collected as part of the screening procedure. Therefore, the complainant considers that this list is irrelevant to justify lawful or legitimate access to his data by his hierarchical superior.

94. Finally, regarding the processing register, the complainant notes that it is not dated and strongly contests its reliability and relevance. Independently of this, the complainant points out that the register does not illustrate how access to his data by his hierarchical superior complies with the principles of integrity and confidentiality enshrined in the GDPR.

95. The complainant also emphasizes that several members of the defendant's Council are aware of the facts of which he is suspected in the context of the judicial information opened against him, which constitutes an unauthorized disclosure of his data and a security breach expressly mentioned in Article 32.2 of the GDPR.

96. Consequently, the complainant believes that the defendant does not sufficiently demonstrate that the measures adopted to ensure the integrity and confidentiality of the data it processed, moreover unlawfully, were appropriate in relation to the identified level of risk.

97.

Finally, the complainant considers that the defendant, by failing to provide sufficient evidence to demonstrate its compliance with Articles 5.1.a), 5.1.b), 5.1.f), 6, 10, 12.1, 12.3, 12.4, 15, and 32 of the GDPR, also fails to prove that it has complied with the accountability obligations imposed by Articles 24.1 and 25.2 of the GDPR. This principle of accountability requires the data controller to take not only adequate measures to comply with the GDPR but also to be able to demonstrate this compliance in a tangible manner. The lack of satisfactory evidence regarding compliance with the aforementioned articles highlights a failure in the application of this fundamental principle.

III.3.2. Position of the defendant

98. The defendant believes it has implemented appropriate technical and organizational measures to ensure a level of security commensurate with the risks. These organizational measures particularly concern the security and confidentiality of the data collected by the defendant in the context of the application of the law of December 11, 1998, and consist of a dedicated unit for so-called "screening" operations.

99. It particularly highlights the following technical and organizational measures: any correspondence addressed to it in the context of the screening procedure cannot, under any circumstances, be opened by the registry but must be immediately forwarded to the competent service; physical documents containing data related to authorizations, certificates, and security notices are kept in a specific and secure cabinet, access to which is limited to the defendant's security officers; and the defendant has established a list of categories of persons having access to personal data related to criminal convictions and offenses or related security measures collected as part of the screening procedure; screening operations are subject to a strict operational process defined in an internal document describing the authorized interactions between security officers and other bodies; the computer data collected as part of the screening process is stored on a specific server that is subject to appropriate technical and IT measures and is only accessible to security officers and administrative staff necessary for processing this data.

100. The defendant explains that the alleged violation of these articles, characterized by the sending of the reasoned decision to the defendant's Council and the complainant's hierarchical superior, does not concern the appropriateness of the defendant's technical and organizational measures but solely the legality of the processing resulting from a legal obligation imposed on the security officer and the defendant.

101. The defendant believes that it has been able to demonstrate that the processing in question was carried out in accordance with the provisions of the GDPR and that the alleged violations are

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superfluous as they are based on the alleged other violations claimed by the complainant.

III.3.3. Position of the Disciplinary Chamber

i. Principles of Security and Accountability

102. The Disciplinary Chamber recalls that, as the data controller, the defendant is required to implement data protection principles and must be able to demonstrate that these are respected (principle of accountability – Article 5.2 of the GDPR).

103. Based on Article 5.1.f) of the GDPR, personal data must be processed in a manner that ensures appropriate security, "including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, using appropriate technical or organizational measures."

104. In this regard, consideration must be given to the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the likelihood and severity of the risks posed by the processing to the rights and freedoms of individuals. Furthermore, the Disciplinary Chamber emphasizes that the reasoned decision is a judicial data for which the defendant must pay particular attention.

105. The Disciplinary Chamber reiterates that the defendant, still in its capacity as data controller, must implement all necessary measures for this purpose (Article 24 of the GDPR). The Disciplinary Chamber insists, as it has previously noted in earlier decisions against public authorities, that the public sector must generally serve as a model in the measures it adopts to ensure compliance with the fundamental right to the protection of personal data.

106. Article 32.1 of the GDPR states that when assessing the appropriate level of security, particular account must be taken of the risks presented by the processing, resulting in particular from the destruction, loss, alteration, and unauthorized disclosure of personal data transmitted, stored, or otherwise processed, or from unauthorized access to such data, whether accidental or unlawful.

107. The Disciplinary Chamber recalls that this Article 32 must be read in light of Articles 5.2 and 24 of the GDPR, which impose on the data controller the obligation to demonstrate compliance with Article 32 of the GDPR by taking appropriate technical and organizational measures in a transparent and traceable manner. The Disciplinary Chamber also recalls that

47 APD decisions 10/2019 and 11/2019 of November 25, 2019. See also, APD decision 129/2021 of November 26, 2021

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Article 25 of the GDPR requires the data controller to implement the necessary measures to comply with the GDPR rules prior to its acts and procedures.

108. It should be noted that the principle of security, with its various components of integrity, confidentiality, and availability, is included in Articles 5.1.f) and 32 of the GDPR and is now elevated to the same level as the fundamental principles of lawfulness, transparency, and fairness. In this regard, Article 32.2.b) of the GDPR provides that "[...] The data controllers [...] implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, including, among other things, as needed; b) means to ensure confidentiality, integrity, availability [...]"

109. Finally, the Disciplinary Chamber wishes to emphasize that the reasoned decision is judicial data as understood by Article 10 of the GDPR, which concerns behavior that leads to societal disapproval even when the person has not (yet) been convicted, if applicable. By its nature, this reasoned decision deserves specific protection due to the serious interference in private and professional life that its processing constitutes.

ii. Technical and Organizational Measures of the Defendant

110. In this case, the unlawfulness of processing 3) to 5) indicates a breach of the confidentiality of the reasoned decision. In this regard, the defendant provided an undated excerpt from its processing register (document 6) in which it identifies the risk of disclosure of reasoned decisions and attaches as an organizational measure access management (i.e., the security officer and administrative staff – 3 agents) and as a technical measure restricted access to this data (i.e., the reasoned decisions are kept sealed).

111. Furthermore, the Disciplinary Chamber notes that the technical and organizational measures are sufficient to ensure the confidentiality of reasoned decisions in exceptional situations where the defendant would become aware of them.

112. The Disciplinary Chamber notes, however, that the defendant should also include measures related to exceptional situations in which the security officer could disclose a reasoned decision to their supervising official.

113. As a result, the Disciplinary Chamber does not find any violation of Articles 5.1.f), 24.1, 25.2, and 32 of the GDPR.

IV. Regarding Corrective Measures and Sanctions

114. Under Article 100 LCA, the Disciplinary Chamber has the power to:

1° dismiss the complaint;

2° order the dismissal;

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3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings or reprimands;

6° order compliance with the requests of the concerned party to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance with processing requirements;

10° order the rectification, restriction, or deletion of data and the notification of such to the data recipients;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° forward the case file to the Public Prosecutor of Brussels, who will inform it of the follow-up actions taken on the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

115. Based on the documents in the file and following its analysis, the Contentious Chamber concludes,

a. on the unlawfulness of the communication of the reasoned decision regarding processing 3), 4), and 5). The Contentious Chamber considers that these processes are not justified under Article 10 of the GDPR, as specified in Title III.1.

b. on a violation of Articles 12.1, 12.3, 12.4, and 15 of the GDPR due to the defendant's refusal to respond to the complainant's access request, which is not based on any valid legal grounds according to Article 23 of the GDPR, as specified in Title III.3.

116. Due to these breaches, the Contentious Chamber issues a reprimand against the defendant based on Article 100, 5° of the LCA.

117. Due to the unlawfulness of the communication of the reasoned decision in processing 3), 4), and 5) and consequently, the unlawful retention of these by the defendant, the Contentious Chamber orders the defendant to delete the reasoned decision, as it has been subject to unlawful processing.

118. Regarding the unjustified refusal of the access request, the Contentious Chamber orders the defendant to take appropriate action on the complainant's access request based on Article 100, 6° of the LCA, and to provide a copy of the correspondence between the Prosecutor and the defendant.

48 CJEU, judgment of March 14, 2024, Újpesti Polgármesteri Hivatal, case C-46/23, point 42.

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In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be filed by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial

Code).

(Sé). Hielke HIJMANS

President of the Contentious Chamber

49 The application must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national registry number or business number;

3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

the signature of the applicant or their lawyer.

50 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.